

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Frederick S. Chung**

Rachel Tien, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: June 10, 2025 TIME: 9:00 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court 3.1308(a)(1) and Local Rule 8.E.

LINE #	CASE #	CASE TITLE	RULING
LINE 1	25CV457167	Gita Punambhai Patel v. Sunil Garg et al.	Demurrer: in light of the notice of bankruptcy stay filed by plaintiff on Friday, June 6, 2025, this demurrer is now OFF CALENDAR, even though the court already prepared a tentative ruling. Click on LINE 1 or scroll down for the original tentative ruling, which will <u>not</u> be entered by the court (but which will be revived if the case is unstayed). The court vacates all hearing dates and sets a case status review re: bankruptcy on December 18, 2025 at 10:00 a.m. in Department 10.
LINE 2	24CV443624	Jose Torres Garcia v. Gardner Family Health Network, Inc. et al.	Click on LINE 2 or scroll down for ruling in lines 2-3.
LINE 3	24CV443624	Jose Torres Garcia v. Gardner Family Health Network, Inc. et al.	Click on LINE 2 or scroll down for ruling in lines 2-3.
LINE 4	20CV369778	Jane Doe v. East Side Union High School District	Motion to be relieved as counsel: <u>parties to appear</u> .
LINE 5	21CV381717	Jonathan Maldonado v. Aniceto Alva	Click on LINE 5 or scroll down for ruling.
LINE 6	22CV397671	George Soliman v. Mohammed Bhuiyan et al.	Click on LINE 6 or scroll down for ruling.
LINE 7	22CV405701	John Holder et al v. Matthew Westley et al.	Click on LINE 7 or scroll down for ruling.

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Calendar Line 1

Case Name: *Gita Punambhai Patel v. Sunil Garg et al.*

Case No.: 25CV457167

I. BACKGROUND

This is a quiet title action by plaintiff Gita P. Patel, a self-represented litigant, against multiple defendants, including both individuals and financial institutions.

According to the first amended complaint (“FAC”), Patel is the sole legal and equitable owner of real property located at 5911 Killarney Circle in San Jose, California (the “Subject Property”). (FAC, p. 2.)¹ She acquired the Subject Property on February 26, 1999. (*Ibid.*) On July 20, 2012, she transferred title to Gita Patel, Trustee of the Gita Patel Trust (created on July 18, 2012). (*Ibid.*) Patel alleges that the defendants made public filings alleging an interest in the Subject Property based upon void contracts. (FAC, p. 4.) She also alleges that certain “Defendant(s)” (unspecified) made certain fraudulent misrepresentations while she obtained a loan on the Subject Property. (*Id.* at pp. 4-6.) Finally, Patel claims that she unknowingly entered into a loan agreement with an (unnamed) defendant and that any such contract is void. (*Id.* at pp. 6-11.)

On January 24, 2025, Patel filed her original complaint against all the defendants, setting forth causes of action for: (1) quiet title; (2) void contract; (3) legal right to quiet title, nunc pro tunc; and (4) “the tort claim.” Five days later, on January 29, 2025, Patel filed the operative FAC alleging the same causes of action.

On March 11, 2025, defendant McCarthy & Holthus, LLP (“McCarthy”), a law firm, filed the present demurrer to the FAC. On April 14, 2025, Patel submitted a “consolidated opposition to all demurrers,” which responds to McCarthy’s demurrer as well as demurrers by various other defendants. (Those other demurrers are currently set to be heard on other dates in the future.)

On March 28, 2025, Patel filed a motion for leave to file a second amended complaint (“SAC”), which is scheduled for hearing on July 10, 2025.

II. DEMURRER TO THE FAC

McCarthy argues that the FAC is subject to demurrer on the grounds of failure to state a cause of action and uncertainty. (Code Civ. Proc., § 430.10, subs. (e), (f).)

A. Request for Judicial Notice

Within her opposition, Patel has requested judicial notice of various court records and exhibits. (Opposition, pp. 4-5.) “Judicial notice is the recognition and acceptance by the court, for use by the trier of fact or by the court, of the existence of a matter of law or fact that is relevant to an issue in the action without requiring formal proof of the matter.” (*Poseidon Development, Inc. v. Woodland Lane Estates, LLC* (2007) 152 Cal.App.4th 1106, 1117.)

¹ The FAC lacks paragraph numbers, and so the court cites page numbers.